

TANGERINE MAGAZINE

200 Park Avenue South, New York, NY 10003

EDITORIAL PHOTOGRAPHY LICENSING AGREEMENT

Agreement Reference: TMG-2025-JP-0108

Date: January 8, 2025

PARTIES

Licensor (Photographer): Jesse Page, 147 Wythe Avenue, Apt 3B, Brooklyn, NY 11249.

Licensee (Publisher): Tangerine Magazine, a publication of Tangerine Media Group LLC, 200 Park Avenue South, New York, NY 10003.

1. GRANT OF LICENSE

Licensor grants to Licensee a non-exclusive, non-transferable license to reproduce, publish, and distribute the Photographs described in Section 2 below, subject to the terms and conditions set forth in this Agreement.

2. DESCRIPTION OF PHOTOGRAPHS

The licensed photographs consist of 8 to 10 final selects created by Jesse Page in connection with the editorial assignment titled "Winter Comfort Foods Feature" for the Winter 2025 issue of Tangerine Magazine. The specific image files will be identified by mutual agreement upon delivery of the final selects.

3. PERMITTED USES

- (a) Territory: North America.
- (b) Media: Print (magazine, single issue) and digital (Tangerine Magazine website and associated digital edition of the Winter 2025 issue).
- (c) Term: Twelve (12) months from the date of first publication.
- (d) This license is non-exclusive. Licensor retains the right to license the Photographs to third parties, provided that such third-party licenses do not conflict with any agreed exclusivity period discussed in writing between the parties.

4. FEES AND PAYMENT

Licensee agrees to pay Licensor a licensing fee of Two Thousand Dollars (\$2,000.00) for the rights granted herein. Payment shall be made within thirty (30) days of Licensee's receipt of a valid invoice from Licensor. Payment shall be made by ACH transfer or check payable to Jesse Page.

5. COPYRIGHT RETENTION

All copyright in and to the Photographs remains with Jesse Page. This Agreement does not constitute a work-for-hire arrangement, and no rights are transferred to Licensee except those expressly set forth herein. Licensee acknowledges that Jesse Page is the sole author and copyright owner of the Photographs.

6. CREDIT LINE

Licensee agrees to include a credit line reading "Photography by Jesse Page" adjacent to or beneath each published Photograph, in a size and placement consistent with Tangerine Magazine's standard editorial credit practices. Failure to provide proper credit shall not invalidate this Agreement but shall constitute a material breach entitling Licensors to seek appropriate remedy.

7. PERMITTED ALTERATIONS

Licensee may make minor color corrections, crop adjustments, and layout-driven sizing modifications to the Photographs for editorial purposes. Licensee shall not alter the Photographs in any manner that materially changes the content, context, or integrity of the image, and shall not use the Photographs in composite images or in a manner that would be misleading or defamatory.

8. INDEMNIFICATION

- (a) Licensors represents and warrants that: (i) Licensors is the sole author and owner of the Photographs; (ii) the Photographs do not, to the best of Licensors's knowledge, infringe upon any third-party intellectual property rights; (iii) Licensors has the full right and authority to enter into this Agreement.
- (b) Licensors shall indemnify, defend, and hold harmless Licensee and its officers, directors, employees, and agents from and against any third-party claims, losses, damages, and expenses (including reasonable attorneys' fees) arising from any breach of the representations set forth in Section 8(a).
- (c) Licensee shall indemnify, defend, and hold harmless Licensors from and against any claims arising out of Licensee's use of the Photographs in a manner not authorized by this Agreement or in violation of any applicable law.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict-of-law principles. Any disputes arising hereunder shall be resolved in the courts of New York County, New York.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior negotiations, understandings, and agreements, whether written or oral. This Agreement may not be modified except by a written instrument signed by both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

TANGERINE MAGAZINE

Tangerine Media Group LLC
200 Park Avenue South
New York, NY 10003

JESSE PAGE

Photographer
147 Wythe Avenue, Apt 3B
Brooklyn, NY 11249

Signature

Name: _____
Title: _____
Date: _____

Signature

Name: Jesse Page
Date: January 8, 2025